

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK, LLC

COMPLAINANT,

v.

SHENZHEN UNIFELIX SCM LIMITED

RESPONDENT.

UNOPPOSED MOTION FOR EXTENSION OF TIME

COMES NOW, Complainant, WAY INTERGLOBAL NETWORK, LLC (“Way”), by its respective undersigned counsel, and pursuant to 46 C.F.R. §§ 502.69 and 502.102, hereby files its Unopposed Motion for Extension of Time to respond to Respondent Shenzhen Unifelix SCM Limited’s Exceptions to the Initial Decision (“Motion”) and in support thereof states as follows:

1. Way’s response to Shenzhen Unifelix SCM Limited’s Exceptions to the Initial Decision is due July 2, 2024.

2. Way’s counsel was out of state in June 2024 for two maritime conferences for SEALI, of which Way’s counsel is Vice Chair and was required to attend the conferences. Way’s counsel did not return from the second conference until the early morning hours of July 1, 2024 due to flight delays.

3. While Way’s counsel anticipated being able to finalize Way’s response to Shenzhen Unifelix SCM Limited’s Exceptions to the Initial Decision by July 2, 2024, it has become

necessary to respectfully request a short extension of time of one week, or until July 9, 2024, to finalize and serve the response.

4. Thursday, July 4, 2024, is a legal holiday.

5. 46 C.F.R. § 502.102(a) provides: “Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause. Motions must set forth the reasons for the request and be received at least seven (7) days before the scheduled filing date. Motions filed less than seven (7) days before the scheduled filing date may be considered where reasonable grounds are found for the failure to meet this requirement.” It was not until July 2, 2024 that it became apparent that additional time would be needed to finalize the response due to time constraints from Way’s counsel’s commitments as Vice Chair of SEALI, flight delays, and other client commitments that arose this week. As such, reasonable grounds exist for failing to bring this Motion within the 7-day deadline contemplated by 46 C.F.R. § 502.102(a).

6. As referenced in the initial Scheduling Order for this matter, “Trial courts ‘have both the power and the duty to take measures to control their dockets and to ensure that counsel properly prepare cases scheduled for trial so that they can be tried and decided rather than continued and rescheduled.’ *Hornbuckle*, 732 F.2d at 1237...” *United States v. Hughey*, 147 F.3d 423, 430-31 (5th Cir. 1998). “The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).” *One Banana North America Corp., v. Hapag-Lloyd Ag and Hapag-Lloyd (America) LLC*, 2022 FMC LEXIS 453, *2 (granting joint request for a revised schedule). *See, also, One Banana North America Corp., v. Hapag-Lloyd Ag and Hapag-Lloyd (America) LLC*, 2022 FMC LEXIS 259 (granting motion to extend deadlines).

7. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondent discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement, on July 2, 2024 by email and telephone. Respondent agrees to the relief requested in this Motion.

8. Way previously agreed to a 30 day extension of time requested by Shenzhen Unifelix SCM Limited to file its exceptions to the Initial Decision.

WHEREFORE, Complainant, WAY INTERGLOBAL NETWORK, LLC, prays that its Unopposed Motion for Extension of Time be granted.

Respectfully submitted,
LINDSEY BROCK LAW, P.A.



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**Attorneys for Complainant, Way Interglobal
Network, LLC**

CERTIFICATE OF SERVICE

I hereby certify that I have this 2nd day of July 2024, served the foregoing document upon Theodore H. Adkinson, Esq. (THA@tradeandcargo.com) by electronic mail, with a courtesy copy to judges@fmc.gov.



Lindsey C. Brock III, Esq.
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